

## 23CHCV03024 23CHCV03024

County: los-angeles

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Case Number: 23CHCV03024 Hearing Date: August 18, 2026 Dept: F43

Dept. F43

Hearing Date: 08-18-26

Case # 23CHCV03024, Fumarolo, et  
al. v. Ends, et al.

Trial Date: 10-26-26

MOTION TO CONSOLIDATE  
CASES

MOVING PARTIES: Defendants Jayden Timmins, Mike Timmins, and  
RoyAnn Timmins

RESPONDING PARTIES: Plaintiffs Gianna Fumarolo, Jason Fumarolo,  
and Michele Fumarolo, individually and as Guardian Ad Litem for plaintiff Ginna  
Fumarolo

RELIEF REQUESTED

Order consolidating the instant matter with related  
cases Brian Ends, et al. v. Jayden Timmins, et al., Los Angeles Superior  
Court Case No. 26CHCV00687, and Kailey Ann McCall v. Jayden Timmins, et al.,  
Los Angeles Superior Court Case No. 26CHCV00890.

RULING: Motion is granted.

## SUMMARY OF ACTION

On October 9, 2023, plaintiffs Gianna Fumarolo, by and through Guardian Ad Litem Michele Fumarolo, Jason Fumarolo, and Michele Fumarolo (Fumarolo Plaintiffs) filed this personal injury action against defendants Brian Ends, Aiden Ends, Jayden Timmins, Mike Timmins, and RoyAnn Timmins, asserting motor vehicle and negligence causes of action. On August 26, 2023, near Garnet Canyon and Cypress Place in Santa Clarita, CA 91390, defendant Jayden Timmins negligently operated a vehicle owned by and entrusted to her by defendants Brian Ends and Aiden Ends. Defendant Jayden Timmins then caused a collision that resulted in plaintiff Gianna Fumarolo's injuries and damages. On December 1, 2023, Jayden Timmins, Mike Timmins, and RoyAnn Timmins (Timmins Defendants) filed an answer. Brian Ends and Aiden Ends (Ends Defendants) filed an answer on August 26, 2024.

On March 2, 2026, the court deemed this matter related to Case No. 26CHCV00687 (Brian Ends, et al. v. Jayden Timmins, et al., Los Angeles Superior Court), with this matter serving as the leading case.

Notices to relate two other cases to this matter were filed on July 29, 2026. (Kailey Ann McCall v. Jayden Timmins, et al., Los Angeles Superior Court Case No. 26CHCV00890; Charlotte Winger v. Jayden Timmins, et al., Los Angeles Superior Court Case No. 26CHCV02644.)

On July 6, 2026, the Timmins Defendants filed the instant motion to consolidate this case with Case Numbers 26CHCV00687 and 26CHCV00890 because all three actions involve common questions of law and fact, are pending before this court, and arise out of the same incident.

On August 5, 2026, Plaintiffs filed an opposition, asserting consolidation is unnecessary because the one common question has been resolved: whether defendant Jayden Timmins is liable for injuries caused by his negligent operation of a golf cart. All that remains at issue is individual to each plaintiff: their conduct, their injuries, and their measure of damages. Trying these issues together will cause jury confusion. Moreover, consolidation would delay trial in this matter well beyond the current trial date of October 26, 2026. This matter was filed in 2023,

while the other two matters were filed in 2026.

On August 11, 2026, Timmins Defendants filed a reply, reiterating that all three cases involve common questions of fact concerning the incident and will involve calling the same witnesses and parties in each action. Plaintiffs will suffer no prejudice from jury confusion because there are only two plaintiffs and the evidence relating to each plaintiff will be carefully presented and delineated in a way that is unlikely to confuse the jury.

## ANALYSIS

### A. Consolidating Cases

“When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”

(Code Civ. Proc., § 1048, subd. (a).)

“Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions . . . will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of the parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (Code Civ. Proc., § 404.1.)

“The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions.” (Estate of Baker (1982) 131 Cal.App.3d 471, 485, citation omitted.)

Consolidation does not require identical causes of action in each case, absolute identity of the parties, or identical allegations. (Ibid.) Where common issues are present in two cases, consolidation is appropriate. (Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48 Cal.App.4th 976, 978-79.)

In deciding a motion to consolidate, the court considers several factors: (1) timeliness of the motion and whether consolidation would delay trial or discovery already proceeded in one case; (2) complexity of the issues and risk of confusing the jury; and (3) whether consolidation would adversely affect the rights of any party.

(Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial, § 12:362.) Consolidation is improper if it forces counsel for one party to argue contradictory positions. (State Farm Mutual Auto. Ins. Co. v. Superior Court (1956) 47 Cal.2d 428, 432.)

1. The

Timmins Defendants' notice of motion complies with California Rule of Court, rule 3.350(a)(1).

"A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated." (Cal. Rules of Court, rule 3.350(a)(1)(A)-(C).)

Because the notice of motion includes all three case captions, case numbers, appearing party names, and the parties' counsel, the motion satisfies Rule 3.350(a)(1).

2.

Despite some prejudice to the Fumarola Plaintiffs, the court finds consolidation of the three cases is appropriate.

The court may consolidate separate actions arising from the same motor vehicle action where the causes of action are identical, or similar, even if the parties and damages are different. (See Jackson v. Lactein Co. (1930) 209 Cal. 520, 520-521.)

Because the complaints in the three actions concern common issues of law and fact, consolidation would promote efficiency and judicial economy.

Brian Ends, et al. v. Jayden Timmins, et al., Los Angeles Superior Court Case No. 26CHCV00687 (Ends Action): On February 18, 2026, Ends

Defendants filed a complaint against Timmins Defendants, asserting causes of action for indemnity, apportionment and contribution, and declaratory relief. The Ends Defendants allege the motor vehicle collision, injuries, and damages arising in this matter were caused by “the negligent, unlawful, and tortious conduct” of the Timmins Defendants. (Kaufman Decl. ¶ 4.) On April 15, 2026, the Timmins Defendants filed a cross-complaint against the Ends Defendants, asserting equitable indemnity, partial equitable indemnity, contribution and equitable apportionment, and declaratory relief.

Kailey Ann McCall v. Jayden Timmins, et al., Los Angeles Superior Court Case No. 26CHCV00890 (McCall Action): On March 3, 2026, Kailey Ann McCall filed a complaint against Jayden Timmins, Brian Ends, and Aiden Ends, asserting motor vehicle and negligence causes of action for injuries she sustained in the same motor vehicle incident. (Kaufman Decl. ¶ 5.) Ms. McCall alleges that on August 26, 2023, she was a passenger in a golf cart driven by defendant Jayden Timmins near 29051 Garnet Canyon Drive in Santa Clarita, CA 91390. (McCall Compl. at p. 5.) The golf cart was registered and owned by Brian David Ends, Aiden Ends, and a Doe Defendant 1. Due to Jayden Timmins' negligent operation, the golf cart flipped over and injured Ms. McCall, who suffered injuries and seeks damages for hospital and medical expenses, pain and suffering, and compensatory damages. On April 21, 2026, Jayden Timmins through her guardian ad litem filed a cross-complaint against Brian David Ends and Aiden Ends, asserting equitable indemnity, partial equitable indemnity, contribution and equitable apportionment, and declaratory relief.

All three cases arise from the same motor vehicle incident and involve the common questions of fact: the date and location of the incident (August 26, 2023, near Garnet Canyon Drive in Santa Clarita, CA); the owners of the golf cart (the Brian Ends and Aiden Ends); and the driver of the golf cart at the time of the incident (Jayden Timmins). Each case also involves the same questions of law: the parties responsible for the injuries and damages of Ms. Fumarolo and Ms. McCall and apportionment of liability amongst the driver and those who owned and entrusted the vehicle to Jayden Timmins.

Due to the common factual questions (who drove the golf cart and who owned and entrusted the golf cart), questions of law (apportionment of liability), causes of action (negligence, motor vehicle, indemnity, and declaratory relief), and parties across parties across all three cases,

consolidation is appropriate.

The Fumarolo Plaintiffs will suffer some prejudice due to consolidation through delaying trial from two months from now (October 26, 2026) to 2-3 years away in order to accommodate the plaintiffs in the McCall and Ends actions. On the other hand, if Ms. Fumarolo and Ms. McCall were passengers in the same golf cart at the time of the incident, entering a judgment for Ms. Fumarolo now could result in multiple and inconsistent judgments down the line in Ms. McCall's matter. The Fumarolo Plaintiffs claim they are trial ready but do not present any evidence demonstrating they have already incurred costs related to trial preparation. The court notes that the five-year cutoff for the Fumarolo action is October 9, 2028, and that trial dates have not been set in the Ends action and the McCall action. Considering Jayden Timmins' deposition testimony concerning her actions that led to the golf cart flip, the supposed conduct that caused Ms. Fumarolo's and Ms. McCall's injuries and the common questions concerning apportionment of liability as to the Ends Defendants, the court believes a continued trial date of no more than 18 months from the October 26, 2026, date will be sufficient for all parties to prepare for trial. (Exh. A: Deposition Transcript at pp. 35:12-21, 69:3-20.) Thus, any prejudice to the Fumarolo Plaintiffs from consolidation is minimal.

Therefore, the court grants Timmins Defendants' motion to consolidate case numbers 23CHCV03024, 26CHCV00687, and 26CHCV00890.

#### CONCLUSION and ORDER

Motion is granted.

The court consolidates case numbers 26CHCV00687 and 26CHCV00890, with 23CHCV03024 serving as the lead case.

Defendants Jayden Timmins, Mike Timmins, and RoyAnn Timmins to give notice.